

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
SHELDON ST. ROSE,

Plaintiff,

Index No.:

Date Filed:

-against-

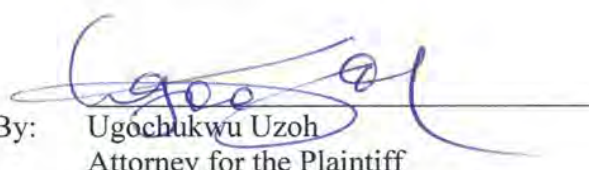
Plaintiff designates
KINGS COUNTY
as the place of trialTHE CITY OF NEW YORK, P.O. GUZMAN
[TAX REG. # 943338] and JOHN DOE AND
JANE DOE #1-4 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),**SUMMONS**Defendants.
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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
July 28, 2014

UGO UZOH, P.C.

By: Ugochukwu Uzoh
Attorney for the Plaintiff
304 Livingston Street, Suite 2R
Brooklyn, New York 11217
(718) 874-6045

To:

THE CITY OF NEW YORK
LAW DEPARTMENT [CORPORATION COUNSEL]
100 Church Street
New York, NY 10007P.O. GUZMAN [TAX REG. # 943338]
NYPD-68th Precinct
333 65th Street
Brooklyn, New York 11220

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHELDON ST. ROSE,
Plaintiff,

Index No.

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P.O. GUZMAN
[TAX REG. # 943338] and JOHN DOE AND
JANE DOE #1-4 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),
Defendants.

-----X
Plaintiff, SHELDON ST. ROSE, by his attorney, The Law Offices of UGO UZOH, P.C.,
complaining of the defendants herein, The City of New York, P.O. Guzman [Tax Reg. #
943338] and John Doe and Jane Doe #1-4 (collectively, "defendants"), respectfully
alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth, Eight and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §1983, [and arising under the law and statutes of the City and State of New York].

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiff timely made and served his notice of claim upon the defendants in compliance with N.Y. Gen. Mun. Law § 50-e.
3. At least thirty days have elapsed since the service of aforesaid notice of claim and adjustment or payment thereof has been neglected or refused.
4. This action is commenced within one year and ninety days after the happening of the event(s) upon which the claim(s) is based.

THE PARTIES

5. Plaintiff is and was at all times material herein a resident of the United States and the State of New York.
6. At all relevant times, defendants P.O. Guzman [Tax Reg. # 943338], John Doe and Jane Doe #1-4 (hereinafter “defendant officers”) were, upon information and belief, and still are, agents and/or officers employed by defendant City of New York.
7. At all times herein, the defendant officers were acting under the color of their official capacity, and their acts were/are performed under color of the statutes and ordinances of the City of New York and/or the State of New York. Defendant officers were/are the servants, agents, and employees of their co-defendant, the City of New York, such that their acts are imputed to the City of New York.
8. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was/is the employer of the defendant officers, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or at the direction of the defendant City of New York.
9. Plaintiff is suing the defendant officers in their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

10. On or about April 28, 2013, at approximately 9:30 a.m., defendant officers, acting in concert, arrested plaintiff without cause at or close to the corner of 4th Avenue and 79th Street Brooklyn, New York, and charged plaintiff with PL 221.05 ‘Unlawful possession of marihuana.’
11. Plaintiff, however, did not commit any offense against the laws of New York City and/or State for which any arrest may be lawfully made.
12. Prior to the arrest, plaintiff had just left his job site and was returning home when defendant officers ran up to him with their weapons drawn screaming and yelling for him to freeze and get down on the floor.

13. Plaintiff promptly knelt down on the floor as he was directed.
14. Immediately upon approaching the plaintiff, defendant officers kicked him down to the floor and held him down with their feet on his back, pinning him face down to the floor.
15. Even with the plaintiff held down and pinned face down on the floor, defendant officers continued to kick, hit and stomp all over the plaintiff and demanded that the plaintiff give them "the f*****g gun."
16. As plaintiff kept screaming that he didn't have any gun on him and that defendant officers were hurting him, defendant officers kept yelling that he should "shut the f**k up."
17. Eventually, defendant officers tightly handcuffed the plaintiff with his hands placed behind his back.
18. After handcuffing the plaintiff, defendant officers pulled him up from the floor.
19. Defendant officers then subjected the plaintiff to an illegal search.
20. Defendant officers did not recover any contraband from their unlawful search of the plaintiff.
21. Nonetheless, defendant officers still arrested the plaintiff.
22. When the plaintiff requested defendant officers to loosen the handcuffs as the handcuffs were too tight and were cutting into his skin causing him to experience pain and numbness, defendant officers refused and yelled that the plaintiff should "shut the f**k up."
23. Plaintiff was caused to sustain serious injuries on various parts of his body as a result of the conduct of defendant officers.
24. Because of his injuries, plaintiff requested to be transported to the hospital for medical treatment and care.
25. Defendant officers however denied plaintiff's entreaties and refused to provide the plaintiff with medical treatment and care.
26. After falsely arresting the innocent plaintiff, defendant officers transported the plaintiff to NYPD-68th Precinct.

27. Subsequently, after detaining the plaintiff for a lengthy period of time at the precinct, defendant officers caused legal process to be issued against the plaintiff requiring the plaintiff to appear in court to defend the false charge(s) levied against him by defendants.
28. Eventually, on or about July 25, 2013, the false charge(s) levied against the plaintiff was summarily dismissed.
29. That each and every officer who responded to and/or was present at the location of the arrest and/or at the precinct or station house knew and was fully aware that the plaintiff did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.
30. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.
31. As a result of the aforesaid actions by the defendants, plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, loss of rights to familial association, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: 42 U.S.C. § 1983

32. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 31 of this complaint as though fully set forth herein.
33. The conduct of defendant officers, as described herein, amounted to false arrest, excessive use of force, abuse of authority, malicious abuse of process, failure to intervene, deliberate indifference, cruel and inhuman treatment, cruel and unusual punishment, unlawful stop and frisk, unreasonable detention, unreasonable search and seizure, racial profiling, abuse of authority, pattern of harassment, conspiracy, discrimination, selective enforcement, fabrication of evidence, denial of equal protection of the laws, denial of right to a fair trial, denial of due process rights and malicious prosecution.

34. Defendants denied plaintiff treatment needed to remedy his serious medical conditions and did so because of their deliberate indifference to plaintiff's need for medical treatment and care.
35. Such conduct violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution.
36. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE
AND MUNICIPAL POLICY - against defendant City of New York

37. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 36 of this complaint as though fully set forth herein.
38. Defendant City of New York, acting through the New York Police Department, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.
39. Additionally, defendant City of New York, acting through Kenneth P. Thompson and the Office of the District Attorney of the County of Kings, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise, and discipline its Assistant District Attorneys and employees concerning correct practices in conducting investigations, interviewing witnesses and informants, assessing the credibility of witnesses and informants, the initiation and/or prosecution of criminal actions, obligation not to promote or condone perjury and/or assist

in the prosecution of innocent persons and the duty and/or obligation of candor toward the court.

40. Defendant City of New York, acting through aforesaid NYPD and District Attorney, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in narcotics, drugs, guns and/or other illicit activities.

41. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.

42. Defendant City of New York has settled numerous lawsuits brought in this district against several officers assigned to the NYPD-68th Precinct concerning similar arrests and charges as those described herein.

43. That defendant City of New York maintained the above described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City of New York acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiff's injuries as described herein.

44. The actions of defendants, acting under color of State law, deprived plaintiff of his due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in his person and property, to be free from abuse of process, the excessive use of force and the right to due process.

45. By these actions, defendants have deprived plaintiff of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, Sixth, Eighth and Fourteenth

Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12

46. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.
47. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiff without probable cause or reasonable suspicion, and harassing and assaulting him and depriving him of due process and equal protection of laws, defendants deprived plaintiff of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.
48. In addition, defendant officers conspired among themselves and conspired with other individuals to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
49. Defendant officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. Defendant officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. Defendant officers acted willfully, knowingly, and with the specific intent to deprive plaintiff of his constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.
50. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiff's state constitutional rights.

FOURTH CAUSE OF ACTION: OTHER NEW YORK TORTS

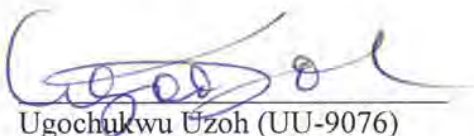
51. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 50 of this complaint as though fully set forth herein.
52. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment, assault and battery, unlawful stop and frisk, unreasonable search and seizure, unreasonable detention, negligence, defamation, conspiracy, special injury, loss of consortium, harassment, tortious interference, abuse of power, fraud, trespass, negligent and intentional emotional distress and negligent hiring and retention of defendant officers.
53. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

WHEREFORE, plaintiff respectfully prays judgment as follows:

- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiff's reasonable attorney's fees; and;
- d. For such other and further relief as the court deems proper.

Dated: Brooklyn, New York
July 28, 2014

UGO UZOH, P.C.



By: Ugochukwu Uzoh (UU-9076)
Attorney for the Plaintiff
304 Livingston Street, Suite 2R
Brooklyn, N.Y. 11217
Tel. No: (718) 874-6045
Fax No: (718) 576-2685

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHELDON ST. ROSE,

Plaintiff,

Index No.

-against-

ATTORNEY'S
VERIFICATION

THE CITY OF NEW YORK, P.O. GUZMAN
[TAX REG. # 943338] and JOHN DOE AND
JANE DOE #1-4 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

Defendants.
-----X

Ugochukwu Uzoh, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

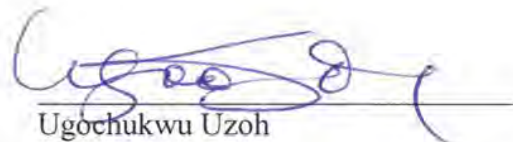
I am of the firm of UGO UZOH, P.C., the attorneys of record for the plaintiff.

I have read the foregoing Complaint and know the contents thereof, the same is true of
my own knowledge except as to matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by the plaintiff because plaintiff does not
reside in Kings County, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiff, information contained in the said plaintiff's
file(s), which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Brooklyn, New York
July 28, 2014


Ugochukwu Uzoh

**THE SUPREME COURT OF THE
STATE OF NEW YORK, KINGS COUNTY**

AT AN IAS PART ____ OF THE SUPREME COURT
OF THE STATE OF NEW YORK, KINGS COUNTY,
BOROUGH OF BROOKLYN, CITY OF NEW YORK
ON THE ____ DAY OF _____, 2014

SHELDON ST. ROSE,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. GUZMAN
[TAX REG. # 943338] and JOHN DOE AND
JANE DOE #1-4 (the names John and Jane
Doe being fictitious, as the true names are
presently unknown),

Defendants.

SUMMONS

&

VERIFIED COMPLAINT

CERTIFICATION: I hereby certify that all papers that I have served, filed
or submitted to the court in the within action are not frivolous pursuant to Sec.
130-1.1a of the Rules of the Chief Administrator (22NYCRR)


Ugochukwu Uzoh

7/28/14
Dated

UGO UZOH, P.C.

Attorneys for plaintiff
Office & Post Office Address

**304 LIVINGSTON STREET, SUITE 2R
BROOKLYN, NY 11217**

TEL: (718) 874-6045